LAW IN GLOBAL AFFAIRS

PROFESSOR DAVID KENNEDY

FALL 2026

Course Description:
This course examines the history of ideas, legal doctrines, institutional and administrative structures intended to organize and legalize international economic and political life. The readings will provide a common background for exploring and comparing efforts both to remake the world and re-imagine law. As we analyze our inheritance from that tradition, we will assess recent efforts to rethink law's role in light of twenty first century political, economic and cultural challenges. Although there is no pre-requisite for the course, students with background in international law, history or international relations may have a better experience.

Evaluation:
This four-credit course will require one 2,000-word final exam essay and two 500-word papers, which will be weighted proportionately in the final evaluation. The two papers combined will be worth one third of the grade, the final essay will be worth two thirds. The take home exam will be distributed on the last day of class and due on the last day of the exam period. Each of the two 500-word essays should comment on the readings for one assignment. These papers must be turned in with a hard copy to Professor Kennedy and by email to Seamus Darby before the class in which that assignment is discussed. At least one paper must concern an assignment considered on or prior to October 19.

Professor Kennedy: dkennedy@law.harvard.edu
Seamus Darby: sdarby@law.harvard.edu

Readings:
All materials are available in the distributed materials and should be available on the course website.

Optional: You may also wish to have a look at one of the following books:

David Kennedy, A World of Struggle: How Power, Law, and Expertise Shape Global Political Economy, Princeton University Press (2016).

David Kennedy and Martti Koskenniemi, Of Law and the World: Critical Conversations on Power, History and Political Economy, Harvard University Press (2023).

COURSE OUTLINE

I. THE MYSTERY OF GLOBAL GOVERNANCE TODAY

Topic 1: The Disciplines of International Law and International Institutions – People with Projects and a History of Ideas

II. THE BACKGROUND ARCHITECTURE OF PUBLIC INTERNATIONAL LAW

Topic 2: The Norms
Custom

Topic 3: Topic 3: Sources – Normative Hierarchy and the law/non-law boundary
Jus Cogens
General Principles
Unilateral Declarations
Non-binding Agreements
Impossibility and Change of Circumstances

Topic 4: The Entities – Statehood and Sovereignty
Statehood and Recognition
Sovereignty and Sovereign Rights

Topic 5: Post-1945 Judicial Rulemaking
Adjudicative Rulemaking
Adjudicating Political Questions

Topic 6: The Entities
International Criminal Law: Individual Responsibility

Topic 7: The Powers
Jurisdiction

Topic 8: The Powers
Territory
International Territories

Topic 9: Mobilizing Architecture – Claims and State Responsibility

III. THE ARCHITECTURE IN HISTORY

Topic 10: Before Modernity

Topic 11: The Turn to Modernism – 1914-1945

Topic 12: Modern International Law Extended and Contested – 1945-2000
Moment 1 – Normativity Revisited

Moment 2 – Managing an Empire
Moment 3 – Back to Norms and Values?

IV. NEW THINKING: ADJUDICATION

Topic 13: National Courts in a Transnational Legal Process and Questions of Reception

V. NEW THINKING: CONSCIOUSNESS

Topic 14: Consciousness – Political Economy

Topic 15: Changing Consciousness as a Governance Strategy – Human Rights and Environmental Protection
Human Rights
Environmental Protection

VI. NEW THINKING: ADMINISTRATION AND EXECUTION

Topic 16: Institutions as "Governance"
League of Nations, the United Nations, and a History of Reform
Leadership as Governance: The Secretary General
Administration as Governance

VII. NEW THINKING: LEGISLATION

Topic 17: Regulation and Private Ordering

VIII. NEW THINKING: THEORIES OF THE WHOLE

Topic 18: Systems Theory and Fragmentation

Topic 19: Global Hierarchy

Topic 20: New Geographies – The Turn to the Local

IX. GLOBAL GOVERNANCE IN ACTION: WAR AS AN INTERNATIONAL LEGAL INSTITUTION

Topic 21: "The Law of Armed Conflict," "Humanitarian Law," the "Laws of War," or "jus in bello"

Topic 22: The Law of Force and the Use of Force – Modern War and Modern Law

SYLLABUS

I. THE MYSTERY OF GLOBAL GOVERNANCE TODAY

Topic 1: The Disciplines of International Law and International Institutions – People with Projects and a History of Ideas

Lori Damrosch and Sean Murphy, "Introduction to the Study of International Law," (2014). (excerpts)

Nathaniel Berman, "Modernism, Nationalism, and the Rhetoric of Reconstruction," 4 Yale Journal of Law and the Humanities 351 (1992). (excerpts)

David Kennedy, "Chart: Intellectual History."

II. THE BACKGROUND ARCHITECTURE OF PUBLIC INTERNATIONAL LAW

Topic 2: The Norms

Custom

Statute of the International Court of Justice, art. 38.

Oscar Schachter, International Law in Theory and Practice (1991). (excerpts)

The Paquete Habana, 175 U.S. 677 (1900).

Lori Damrosch and Sean Murphy, "Customary Law Questions," International Law: Cases and Materials, 61 (2014).

2018 International Law Commission Draft Conclusions on Customary International Law

Myres S. McDougal on Customary Law, quoted in Damrosch and Murphy, International Law: Cases and Materials, 69, note 5 (2014).

The Case of the S.S. "Lotus" (France v. Turkey), 1927 P.C.I.J. (ser. A) No. 10. (excerpts)

The Legality of the Threat or Use of Nuclear Weapons, Advisory Opinion, I.C.J. Reports (1996). (excerpts)

Topic 3: Sources – Normative Hierarchy and the law/non-law boundary

General Principles

Oscar Schachter, International Law in Theory and Practice (1991). (excerpts)

Jus Cogens

International Law Commission, "Fragmentation of International Law," Fragmentation of International Law: Difficulties Arising from the Diversification and Expansion of International Law (2006). (excerpts on *jus cogens*)

Hilary Charlesworth and Christine Chinkin, "The Gender of *Jus Cogens*," 15 Human Rights Quarterly 66 (1993). (excerpts)

Unilateral Declarations

Nuclear Tests Case (Australia v. France), 1974 I.C.J. 253. (excerpts)

Non-binding Agreements

Oscar Schachter, "The Twilight Existence of Nonbinding International Agreements," 71 American Journal of International Law 296 (1977). (excerpts)

Impossibility and Change of Circumstances

Vienna Convention on the Law of Treaties, art. 61-62.

Techt v. Hughes, 229 N.Y. 222, 128 N.E. 185 (1920). (excerpts)

Oliver J. Lissitzyn, "The International Load Line Convention Case," 61 American Journal of International Law 908 (1967). (excerpts)

Topic 4: The Entities – Statehood and Sovereignty

Note: This topic may take two classes to complete.

Lori Damrosch and Sean Murphy, "States," International Law: Cases and Materials (2014), 281.

Montevideo Convention on the Rights and Duties of States, art. 1-3.

Arnulf Becker Lorca, Mestizo International Law: A Global Intellectual History 1842-1933 (2014). (excerpts)

Michael Schwirtz, Maria Varenikova, and Rick Gladstone, "Putin Calls Ukrainian Statehood a Fiction. History Suggests Otherwise.," The New York Times, Feb. 21, 2022.

Tracy Robinson, "Dyadic Caribbean Constitutions," in Elisabeth Perham, Maartje De Visser and Rosalind Dixon (eds.), *Small State Constitutionalism* (Oxford: Hart, 2026), pp. 31–34.

Statehood and Recognition

Salimoff Co. v. Standard Oil Co., 262 N.Y. 220, 186 N.E. 679 (1933). (excerpts)

Tacey Rychter, "New Emoji is a Meaningful Symbol for Indigenous Australians," The New York Times, May 26, 2017.

Sovereignty and Sovereign Rights

Schooner Exchange v. McFaddon, 11 U.S. 116 (1812). (excerpts)

The Antelope, 23 U.S. (10 Wheat.) 66 (1825). (excerpts)

Henry Maine, "The Kathiawar States and Sovereignty," (1864).

American Banana Co. v. United Fruit Co., 213 U.S. 347 (1909). (excerpts)

Morris R. Cohen, "Property and Sovereignty," 13 Cornell Law Review 8 (1927). (excerpts)

Corfu Channel Case (United Kingdom v. Albania), 1949 I.C.J. Rep 244. (excerpts)

Karen Knop, "Re/Statements: Feminism and State Sovereignty in International Law," 3 Transnational Law & Contemporary Problems 318 (1993). (excerpts)

Topic 5: Post-1945 Judicial Rulemaking

Adjudicative Rulemaking

Lori Damrosch and Sean Murphy, "Acquisition and Denial of Nationality," International Law: Cases and Materials, 444-445 (2014).

Nottebohm Case (Liechtenstein v. Guatemala), 1955 I.C.J. Rep 4. (excerpts)

Barcelona Traction, Light and Power Company, Limited (Belgium v. Spain), 1970 I.C.J. 3. (excerpts)

Adjudicating Political Questions

United States Diplomatic and Consular Staff in Tehran (United States v. Iran), 1979 I.C.J. 7 (Order of Dec 15). (excerpts)

Military and Paramilitary Activities in and Against Nicaragua (Nicaragua v. United States of America), 1984 I.C.J. Reports 392. (excerpts)

Topic 6: The Entities

International Criminal Law – Individual Responsibility

Martti Koskenniemi, "Between Impunity and Show Trials," 6 Max Planck Yearbook of United Nations Law 1 (2002). (excerpts)

John Bolton, "Protecting American Constitutionalism and Sovereignty from International Threats," Remarks on the International Criminal Court at the Federalist Society, Washington D.C, Sept. 10, 2018.

Zinaida Miller, "Times of Violence, Times of Justice" 12 London Review of International Law (2024), pp. 249–253.

Tor Krever, "Scurrying to the Hague" 12 London Review of International Law (2024), pp. 231-232.

Mark A. Drumbel, "Smouldering Semantics" 12 London Review of International Law (2024), pp. 253-254.

Karen Engle, "Introduction," The Grip of Sexual Violence in Conflict (2020). (excerpts)

Topic 7: The Powers

Jurisdiction

Lori Damrosch and Sean Murphy, "Three Forms of Jurisdiction," International Law: Cases and Materials, 733 (2014).

American Law Institute, Restatement of the Law, Third: The Foreign Relations Law of the United States," §402-404 (1987).

United States v. Bank of Nova Scotia, 691 F.2d 1384 (1982). (excerpts)

Anna Sauerbrey, "The Failure of Europe's Feeble Muscle Flexing," The New York Times, Feb. 10, 2020.

Robert Malley, Jean Manas, and Crystal Nix, "Constructing the State Extraterritorially: Jurisdictional Discourse, the National Interest, and Transnational Norms," 103 Harvard Law Review 1273 (1990). (excerpts)

Paul Schiff Berman, "The Globalization of Jurisdiction," 151 University of Pennsylvania Law Review 311 (2002). (excerpts)

Shahd Hammouri, "Shipments of Death," LPE Project, July 15, 2024.

Topic 8: The Powers

Territory

Island of Palmas Case (or Miangas) (United States v. The Netherlands), Perm. Ct of Arbitration, 2 U.N. Rep. Int'l Arb. Awards 829 (1928). (excerpts)

Western Sahara, Advisory Opinion, 1975 I.C.J. Rep. 12.

Richard Pérez-Peña, "How a Long Insurgency Plays into Trump's Move on Morocco," The New York Times, Dec. 10, 2020.

Frontier Dispute (Burkina Faso v. Mali), 1986 I.C.J. Rep. 554. (excerpts on "*uti possidetis juris*" principle)

Jure Vidmar, "Greenland and Territorial Acquisition under International Law," EJIL: Talk!, Feb. 6, 2025.

International Territories

Nathaniel Berman, "Legalizing Jerusalem or, of Law, Fantasy, and Faith," 45 Catholic University Law Review 823 (1996).

Topic 9: Mobilizing Architecture – Claims and State Responsibility

Lori Damrosch and Sean Murphy, "Rules on State Responsibility," International Law: Cases and Materials, 485 (2014).

International Law Commission, "Draft articles on Responsibility of States for Internationally Wrongful Acts, with commentaries," (2001). (excerpts)

Lori Damrosch and Sean Murphy, "Countermeasures," International Law: Cases and Materials, 521 (2014).

Gabčikovo-Nagymaros Project (Hungary v. Slovakia), 1997 I.C.J. 7 (1997). (excerpts)

Air Services Agreement Case (France v. United States), 1978 18 R.I.A.A. 417. (excerpts)

Richard B. Lillich and John M. Paxman, "State Responsibility for Injuries to Aliens Occasioned by Terrorist Activities," 26 American University Law Review 717 (1977).

New York Times, "The Urgent Search for a Cyber Bullet Against Iran," (2019)

III. THE ARCHITECTURE IN HISTORY

Topic 10: Before Modernity

Note: Please review materials from Topic 4: Schooner Exchange v. McFaddon, The Antelope, American Banana Co. v. United Fruit Co., and Corfu Channel case.

David Kennedy, "Primitive Legal Scholarship," 27 Harvard International Law Journal 1 (1986). (excerpts)

Annelise Riles, "Aspiration and Control: International Legal Rhetoric and the Essentialization of Culture," 106 Harvard Law Review 723 (1993). (excerpts)

Antony Anghie, Imperialism, Sovereignty and The Making of International Law, 100-114 (2005).

Topic 11: The Turn to Modernism – 1914-1945

Alejandro Alvarez, "The New International Law," Transactions of the Grotius Society 35 (1929).

Philip Jessup, "The Functional Approach as Applied to International Law," Third Conference of Teachers of International Law 1 (1928).

Robert Redslob, "The Problem of Nationalities," Transactions of the Grotius Society 21 (1931).

Detlev Vagts, "International Law in the Third Reich," 84 American Journal of International Law 661 (1990). (excerpts)

Topic 12: Modern International Law Extended and Contested – 1945-2000

Moment 1 – Normativity Revisited

John Austin, The Province of Jurisprudence Determined, 1832. (excerpts)

Hans Kelsen, "Lecture III: International Law and the State," Law and Peace in International Relations, 56 (1942). (excerpts)

Corfu Channel Case (United Kingdom v. Albania), 1949 I.C.J. 4. 22 (excerpts)

Moment 2 – Managing an Empire

Myres McDougal, "Law and Power," 46 American Journal of International Law 102 (1952).

Oscar Schachter, "Dag Hammarskjold and the Relation of Law to Politics," 56 American Journal of International Law 1 (1962).

Philip Jessup, Transnational Law, 1 (1956). (excerpts)

Ruth Wedgwood, "Unilateral Action in a Multilateral World," Multilateralism and U.S. Foreign Policy: Ambivalent Engagement, 167 (2001).

Anne Marie Slaughter, "Good Reasons for Going Around the U.N.", New York Times 18 March 2003.

Moment 3 – Back to Norms and Values?

Louis Henkin, How Nations Behave: Law and Foreign Policy, 25 (1980). (excerpts)

Louis Henkin, "International Law and the Inter-State System," International Law: Politics and Values, 4 (1995). (excerpts)

IV. NEW THINKING: ADJUDICATION

Topic 13: National Courts in a Transnational Legal Process and Questions of Reception

Harold H. Koh, "Transnational Legal Process," 75 Nebraska Law Review 181 (1996). (excerpts)

Harold H. Koh, "The Trump Administration and International Law," 56 Washburn Law Journal 413 (2017). (excerpts)

Jack Goldsmith and Shannon Togawa Mercer, "International Law and Institutions in the Trump Era," 61 German Yearbook of International Law 11 (2019). (excerpts)

Eyal Benvenisti, "The Resilience of International Law in the Face of Empire," Just Security, Feb. 17, 2025.

Monica Hakimi & Jacob Katz Cogan, "The End of the U.S.-Backed International Order and the Future of International Law," 119 American Journal of International Law 279 (2025). (excerpts)

V. NEW THINKING: CONSCIOUSNESS

Topic 14: Consciousness – Political Economy

Wilhelm Röepke, "Economic Order and International Law (Volume 86)," Collected Courses of the Hague Academy of International Law, 203 (1955). (excerpts)

Judith Bello, "The WTO Dispute Settlement System Understanding: Less is More," 90 American Journal of International Law 416 (1996).

Amr A. Shalakany, "Arbitration and the Third World: A Plea for Reassessing Bias Under the Specter of Neoliberalism," 41 Harvard International Law Journal 423 (2000). (excerpts)

Topic 15: Changing Consciousness as a Governance Strategy – Human Rights and Environmental Protection

Human Rights

Lori Damrosch and Sean Murphy, "Foundations of Human Rights in Law," International Law: Cases and Materials, 915 (2014).

Lori Damrosch and Sean Murphy, "Competing Interests," International Law: Cases and Materials, 920 (2014).

Walter Johnson, "To Remake the World: Slavery", Racial Capitalism and Justice, *Boston Review* (2018).

David Kennedy, "The International Human Rights Movement: Part of the Problem?," The Dark Sides of Virtue (2004).

Vasuki Nesiah, "Slavery's Afterlives: Humanitarian Imperialism and Free Contract" American Society of International Law (2023).

Recommended:

David Kennedy, "Spring Break: The Activist Individual," The Dark Sides of Virtue (2004).

Environmental Protection

Recommended:

Philippe Sands, "Part Two – International Environmental Law: Principles, Rules and Legal Techniques," xxx and "Part Three – Critical Issues in the Greening of International Law," xlivi, Greening International Law (1994).

Richard Falk, "Environmental Protection in an Era of Globalization," 6 Yearbook of International Environmental Law 3 (1995). (excerpts)

Haroon Siddique, "Legal Experts Worldwide Draw up 'Historic' Definition of Ecoside," The Guardian, June 22, 2021.

CODA

Michelle Burgis-Kasthala & Matilde Masetti Placci, "Lost for Words, yet Grasping for Neologisms: Gaza, Genocide and the Discursive Limits of International Law," EJIL: Talk!, Nov. 14, 2024. (excerpts)

VI. NEW THINKING: ADMINISTRATION AND EXECUTION

Topic 16: Institutions As "Governance"

Roland Barthes, "The Eiffel Tower," The Eiffel Tower and Other Mythologies, 3 (1979).

League of Nations, the United Nations, and a History of Reform

P.E. Corbett, "What is the League of Nations?," 5 British Yearbook International Law 119 (1924). (excerpts)

Leadership as Governance – The Secretary General

David Kennedy, "Leader, Clerk or Policy Entrepreneur? The Secretary-General in a Complex World," Secretary or General?: The UN Secretary General in World Politics, 158 (2006).

Administration as Governance

Benedict Kingsbury, Nico Krisch, and Richard B. Stewart, "The Emergence of Global Administrative Law," 68 Law and Contemporary Problems 15 (2005). (excerpts)

Zinaida Miller, "Perils of Parity: Palestine's Permanent Transition," 47 Cornell International Law Journal 331 (2014). (excerpts)

VII. NEW THINKING: LEGISLATION

Topic 17: Regulation and Private Ordering

Dan Danielsen, "Corporate Power and Global Order," International Law and Its Others, 85 (2006).

Dan Danielsen, "Local Rules and a Global Economy: An Economic Policy Perspective," 1 Transnational Legal Theory 49 (2010). (excerpts)
Adam Satariano, "The World's Tech Ambassador to the Tech Industry," The New York Times, Sept. 3, 2019.

The IGLP Law and Global Production Working Group, **"**The Role of Law in Global Value Chains: A Research Manifesto," 4 London Review of International Law 57 (2016).

New York Times, "Elon Musk's Unmatched Power in the Stars," July 28th, 2023, pp. 1-22.

VIII. NEW THINKING: THEORIES OF THE WHOLE

Topic 18: Systems Theory and Fragmentation

International Law Commission, "Fragmentation as a Phenomenon," Fragmentation of International Law: Difficulties Arising from the Diversification and Expansion of International Law, 10 (2006). (excerpts)

Andreas Fischer-Lescano and Gunter Teubner, "Regime-Collisions: The Vain Search for Legal Unity in the Fragmentation of Global Law," 25 Michigan Journal of International Law 999 (2004). (excerpts)

Andrew T. F. Lang, "Legal Regimes and Professional Knowledges: The Internal Politics of Regime Definition," Regime Interaction in International Law, 113 (2012). (excerpts)

Martti Koskenniemi, "The Laws That Rule Us: The Legal Infrastructure of Global Capitalism," *New Left Review* 154 (July–August 2025). (excerpts)

Elena Chachko and Benton Heath, "A Watershed Moment for Sanctions? Russia, Ukraine and the Economic Battlefield," 116 AJIL Unbound 135 (2022).

Topic 19: Global Hierarchies

Colonialism

Nnamdi Azikiwe, "Liberian Diplomacy," Liberia in World Politics, 15 (1934). (excerpts)

W.E.B. Du Bois, "The Collapse of Europe," The World and Africa: An Inquiry into the Part which Africa has Played in World History, 1 (1946). (excerpts)

Josep Borrell, High Representative of the European Union for Foreign Affairs and Security Policy / Vice-President of the European Commission, "Statement of 13 10 2022."

"Josep Borrell apologies for controversial 'garden v. jungle' metaphor but defends speech" published 19/10/22.

Antony Anghie, "Toward a Postcolonial International Law" in Prabhakar Singh and Benoit Mayer, Critical International Law (Oxford, 2014) pp. 123 and 135-140.

Resistance

Mohammed Bedjaoui, "The Relations Between the International Economic Order and The International Legal Order," Towards a New International Economic Order, 97 (1979). (excerpts)

Balakrishnan Rajagopal, International Law from Below, Development, Social Movements, and Third World Resistance, 1 (2003). (excerpts)

Arnulf Becker Lorca, Bargaining with Sovereignty, Fighting Global Inequality (forthcoming). (excerpts)

B.S. Chimni, International Law and World Order: A Critique of Contemporary Approaches, (2nd edition), Cambridge University Press (2017), pp. 506-517.

Topic 20: New Geographies – The Turn to the Local

Luis Eslava, "Introduction," Local Space, Global Life: The Everyday Operation of International Law and Development, 1 (2015). (excerpts)

Saskia Sassen, "Foundational Subjects for Political Membership: Today's Changed Relation to the National State," Territory, Authority, Rights: From Medieval to Global Assemblages, 277 (2008). (excerpts)

Diane E. Davis and Nora Libertun de Duren, "Identity Conflicts in the Urban Realm," Cities and Sovereignty, 1 (2011). (excerpts)

Karen Knop, "The Hidden City in International Legal Thought," Research Handbook on International Law and Cities, 35 (2021). (excerpts)

IX. GLOBAL GOVERNANCE IN ACTION: WAR AS AN INTERNATIONAL LEGAL INSTITUTION

Topic 21: "The Law of Armed Conflict," "Humanitarian Law," the "Laws of War," or "jus in bello"

Mary Ellen O'Connell, "Historical Development and legal Basis," The Handbook of International Humanitarian Law (2013). (excerpts)

Steven Haines, "The Developing Law of Weapons," The Oxford Handbook of International Law in Armed Conflict (2014). (excerpts)

Bonnie Kristian, "Are We Sure America Is Not at War in Ukraine?," The New York Times, Jun. 20, 2022.

Sigmund Freud, "Thoughts for the Times on War and Death" (1915).

Carol Cohn, "Sex and Death in the Rational World of Defense Intellectuals," 12 Signs: Journal of Women in Culture and Society 687 (1987).

Topic 22: The Law of Force and the Use of Force – Modern War and Modern Law

Carl von Clausewitz, On War (1832). (excerpts)

Michel Foucault, "The Body of the Condemned," Discipline and Punish: The Birth of the Prison, 1 (1979).

David Kennedy, "Legal Expertise in War," A World of Struggle, 256 (2016).